

Court No. - 6

Case :- WRIT - C No. - 14444 of 2024

Petitioner :- Jaswant Nagar Cold Storage Pvt Limited

Respondent :- Appellate Authority Additional Commissioner
And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Manu Ghildyal

Hon'ble Dinesh Pathak,J.

1. It has been submitted that Assessing Officer has illegally issued a letter dated 4.5.2021 demanding the electricity dues without following provisions as enunciated under Section 126(1) of Electricity Act, 2003 read with Clause 6.8(c)(i) of the Supply Code, 2005. It is further submitted that while deciding the appeal, the appellate court has passed an order in a very perfunctory manner without properly following the provision as enunciated under Clause 6.8(d)(v) of UP Electricity Supply Code, 2005. It is further submitted that the petitioner has already deposited 50% amount of the electricity dues as demanded against him at the time of filing appeal.

2. The matter requires consideration.

3. Respondent No. 1 is represented through learned Standing Counsel. Respondents No. 2 and 3 are also being represented through penal lawyer, who have prayed for and are granted three weeks' time to file counter affidavit in the matter. The petitioner will have two weeks, thereafter, for filing rejoinder affidavit, if any.

4. List this matter on 16.7.2024.

5. Till the next date of listing, realization of the electricity dues in pursuance of the orders dated 4.5.2021 and 7.3.2024 shall remain stayed.

Order Date :- 1.5.2024

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Hon'ble Chandra Kumar Rai,J.

1. Heard Sri Bidhan Chandra Rai, learned counsel for the petitioner.
2. No counter affidavit has been filed by the respondents till date.
3. List this case on **26.09.2024**.
4. Interim order dated 01.05.2024 is extended till further orders of this Court.

Order Date :- 16.7.2024

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